

CHAPTER 17.

An Act to amend the Land Drainage Act, 1861, and to make further provision for the drainage of agricultural land.
[30th July 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.**AMENDMENTS OF PRINCIPAL ACT.**

Power to make orders constituting drainage districts, &c.

24 & 25 Vict.
c. 133.

1.—(1) Subject in the case of opposed orders to confirmation by Parliament in manner provided by the First Schedule to this Act, the Board of Agriculture and Fisheries may by order—

- (a) constitute any area a separate drainage district for the purposes of Part II. of the Land Drainage Act, 1861 (in this Act referred to as the principal Act), and include therein the whole or any part of any existing drainage area, and provide for the constitution of the drainage board for the district and the appointment or election of the members thereof;
- (b) alter the boundaries of any drainage area;
- (c) define the limits of any commission of sewers;
- (d) confer on any drainage authority such additional powers of levying drainage rates or borrowing powers as may be necessary or expedient, or alter or supplement in any other respect the provisions of any local Act or of any award made under any such Act where in the opinion of the Board such alterations or supplemental provisions are necessary or expedient for enabling the area for the benefit of which drainage works are authorised by the local Act or award to be drained effectually.

(2) Where the council of a county or county borough in which the drainage area of any drainage authority is situate, or if such area is situated in more than one county or county borough, the councils thereof present a petition to the Board for the purpose, the Board may by a like order, made after consultation with the Local Government Board, transfer to the council or councils the powers, duties, property, and obligations of the drainage authority, and thereupon the council or councils shall become the drainage authority for the area for the purposes of this Act, and any expenses incurred by the council or councils as such authority shall be defrayed under and in accordance with the powers so transferred and not in any other manner.

(3) Any order under this section may contain any incidental, consequential, or supplemental provisions which appear to be necessary or proper for the purposes of the order.

(4) An order under this section may make any river, canal, or inland navigation or the cuts, reservoirs, feeders, or other works belonging thereto liable to the control of a drainage authority, notwithstanding the provisions of any local Act exempting the same from such control and of section fifty-seven of the principal Act, subject nevertheless to the provisions of section fifty-four of the principal Act.

(5) References in Part II. of the principal Act as amended by this Act to provisional orders shall be construed as including references to orders so made.

2.—(1) The Board of Agriculture and Fisheries may on the receipt of such a petition as is hereinafter mentioned, or, in the case of the constitution of a separate drainage district or of the alteration of the drainage area of any drainage authority, on their own initiative without any petition, after making such inquiries as they think necessary, and after consultation with the council of any county or county borough affected by the proposed order or any committee thereof appointed for the purpose, prepare a draft order to carry the petition into effect, or, as the case may be, to constitute the district or alter the area.

Procedure for
the making of
Orders.

(2) A petition for an order may be presented, in the case of a proposal for the definition of the limits of a commission of sewers, by the commission, and in the case of a proposal to alter or supplement a local Act conferring powers on a drainage authority, by that authority, or by the council of any administrative county or county borough in which any part of the drainage area of that authority is situate, and in other cases by—

- (a) the proprietors of one-tenth of the area proposed to be constituted a separate drainage district, or of the area proposed to be added to or excluded from a drainage area; or
- (b) the drainage authority of a drainage area proposed to be altered; or
- (c) the council of any administrative county or county borough in which any part of the land proposed to be affected by the order is situate.

(3) Where the Board have prepared a draft order the procedure thereon shall be in accordance with the First Schedule to this Act.

(4) An order constituting an area a separate drainage district or including in any drainage district any drainage area or any part of any drainage area shall not be made if within the prescribed period after publication of the draft order the proprietors of one-third of the proposed drainage district signify to the Board their objection to the making of the order.

(5) An order altering the boundaries of a drainage area or including in any drainage district any part of a drainage area shall not be made without the consent of the drainage authority

for the area, or if within the prescribed period after the publication of the draft order the proprietors of one-third of the area proposed to be added to or excluded from the drainage area signify to the Board their objection to the making of the order.

(6) An order or provisional order made under this Act or the principal Act may be repealed, altered, or amended by an order made by the Board under and in accordance with the provisions of this Act.

Expenses of
making the
order.

3.—(1) The expenses of the Board of Agriculture and Fisheries, and, if and so far as the order so directs, the expenses of the petitioners, in relation to the making or confirmation of an order, shall be defrayed as follows:—

(a) Where a petition has been presented for the order and the order is made and comes into force, then—

(i) if the order is made on a petition for the constitution of a separate drainage district, the expenses shall be a first charge on the rates leviable in the district constituted by the order;

(ii) if the order is made on a petition for the alteration or definition of the boundaries of a drainage area, the expenses shall be a first charge on the drainage rates leviable by the drainage authority in the area as altered or defined by the order, or where more than one area is so altered on the drainage rates leviable within those areas in such proportions as the Board direct;

(iii) if the order is made on a petition for altering or supplementing the powers conferred on the drainage authority by a local Act or award the expenses shall be a first charge on the drainage rates leviable by the drainage authority;

(iv) if an order is made on a petition for the transfer to the council of a county or county borough, or to two or more such councils, of the powers, duties, property, and obligations of a drainage authority by the petitioners:

(b) Where a petition has been presented for the order and the order is not made or does not come into force, the expenses shall be paid by the petitioners:

(c) Where a petition has not been presented for the order, the expenses shall, if the order is made and comes into force, be defrayed if and so far as the order so directs in the same manner as if a petition for the order had been presented, and subject as aforesaid the expenses shall be defrayed by the Board.

(2) The petitioners shall give such security for expenses as may be required by the Board.

Provisions as
to rating.

4.—(1) The powers of a commission of sewers or of a drainage board constituted under the principal Act or this Act

shall include, and shall be deemed always to have included, powers of levying drainage rates on the basis of acreage or on the basis of annual value of the lands liable to be rated.

(2) An order made under this Act may provide for differential rating of part of any drainage district (whether constituted under the principal Act or this Act), or any area within the limits of a commission of sewers, and for total or partial exemption of buildings, railways, canals, inland navigations or any other special class of land within the district or area.

5. Where it is shown to the satisfaction of the Local Government Board that the execution or maintenance of any drainage works is desirable in the interests of the public health of any area, or for the protection or better enjoyment of any highways, the Board may authorise the local authority of the district for the purposes of the Public Health Act, 1875, in which the area to be benefited is situated, or the highway authority, as the case may be, to contribute or undertake to contribute to the expenses of the execution or maintenance of the drainage works by a drainage authority, such an amount as the Board, having regard to the public benefit derived therefrom, may sanction and may direct how and out of what fund or rate such contributions may be defrayed.

Powers of local authorities to contribute to drainage expenses.
38 & 39 Vict. c. 55.

6. Any drainage authority may with the consent of the drainage authority of any adjoining drainage area execute and maintain in that adjoining area any works which the first-mentioned drainage authority might execute or maintain within their own area on such terms as to payment or otherwise as may be agreed on between the drainage authorities, or may agree to contribute to the expense of the execution or maintenance of any works by the drainage authority of any adjoining drainage area, and any expense incurred by any drainage authority under this section shall be defrayed as if the expense had been incurred in their own drainage area.

Arrangements between drainage authorities.

7.—(1) A drainage authority and a navigation authority may, if authorised in that behalf by an order made by the Board of Agriculture and Fisheries after consultation with the Board of Trade, and, if opposed, confirmed by Parliament, in accordance with the First Schedule to this Act, enter into arrangements for—

Power to enter into arrangements with navigation authorities.

- (a) the transfer to the drainage authority of the whole or any part of the undertaking, powers, duties, and obligations of the navigation authority with a view to improving the drainage area of the drainage authority; or
- (b) the alteration or management of the works or undertaking of the navigation authority or any parts thereof with a view to improving the drainage of the drainage area of the drainage authority; or

(c) payment by any party to any such arrangement to the other party as the consideration for any matter or subject to which the arrangement relates.

(2) Notice of the intention to make an order under this section shall be given to the Postmaster-General.

(3) Nothing in this section shall be construed as prejudicing or affecting any powers of entering into such arrangements which any such authorities may possess independently of this section.

Power of
drainage
authorities to
execute works
outside their
area.
10 & 11 Vict.
c. 38.

8. A drainage authority desiring to execute drainage works for the benefit of their drainage area in lands outside that area shall have the like powers in that behalf as are conferred by the Land Drainage Act, 1847, or Part III. of the principal Act, on persons interested in land which is capable of being drained or improved and desiring to execute drainage works for such purpose, and any expense incurred by a drainage authority under this section shall be defrayed as if the expense had been incurred in the drainage area of the drainage authority.

Reports by
drainage
authorities.

9.—(1) Every drainage authority shall, before such date in every year as the Board of Agriculture and Fisheries may fix, send to the Board a report of their proceedings during the preceding year, and shall at the same time send a copy of such report to the council of any administrative county or county borough in which any part of the drainage area of the authority is situate.

(2) Such report shall be in such form and shall contain such information as the Board may, by regulations to be made under this Act, direct.

Joint action
by councils.

10. The councils of any two or more counties or county boroughs may combine for the purpose of the joint exercise of any powers conferred on them by or under this Act, and may for those purposes appoint a joint committee and may agree as to the proportions in which the several councils represented on the joint committee are to contribute towards the expenses of such joint committee.

Expenses of
councils.

11. Except as otherwise expressly provided by this Act any sums payable under this Act by the council of a county or county borough shall, in the case of a county, be paid out of the county fund and, in the case of a county borough, be paid out of the borough fund or rate.

Power to in-
vest money on
security of
drainage rates.

12. Where the proprietors of any land comprised within a drainage area are authorised to invest money on real security, they shall (unless the contrary is provided by the instrument authorising such investment) have power to invest money on a first mortgage of the drainage rates leviable by the drainage authority for that area.

Definitions.

13. For the purposes of this Part of this Act, unless the context otherwise requires, the expression "drainage authority"

means any commission of sewers, any drainage board constituted under the principal Act or this Act, and any body of persons authorised by any local Act or any award made under any such Act to make or maintain works for the drainage of land; and the expression "drainage area" means the area within the limits of a commission of sewers, the district of such drainage board as aforesaid, and the area within the jurisdiction of such body of persons as aforesaid.

14. The provisions of the principal Act mentioned in the first column of the table in Part I. of the Second Schedule to this Act shall be amended in the manner specified in the second column of that table, and the principal Act shall be repealed to the extent specified in Part II. of that schedule.

Minor amend-
ments and
repeals.

PART II.

FURTHER PROVISIONS FOR THE IMPROVEMENT OF THE DRAINAGE OF AGRICULTURAL LAND.

15.—(1) For the purpose of enforcing in relation to agricultural land any liability to repair which is enforceable under section fifteen of the Sewers Act, 1833, any officer appointed by the Board of Agriculture and Fisheries may exercise on behalf of the Board the powers conferred by that section on an officer appointed by a court of sewers.

Powers of
Board to
enforce per-
formance of
duties.

3 & 4 Will. 4.
c. 22.

(2) Where, in the opinion of the Board, any agricultural land is injured or likely to be injured by flooding or inadequate drainage which might be remedied wholly or partially by the exercise of drainage powers which are conferred by any general or local Act or an order having the force of an Act of Parliament, or by any award made under any Act, or by any commission of sewers, and which are not being exercised or, in the opinion of the Board, are being insufficiently exercised, the Board may exercise any such power and also any power conferred by any such Act, order, award, or commission for defraying the expenses so incurred or for any purpose incidental to the exercise of any such power: Provided that this subsection shall not apply to powers conferred upon any railway company or navigation authority for the purposes of their undertaking.

16.—(1) Where the Board of Agriculture and Fisheries are of opinion that any agricultural land is capable of improvement by drainage works, but that the same cannot be conveniently dealt with by an order under Part I. of this Act, and that the expenses of executing and maintaining such works will not exceed the increase in the value of the land arising therefrom, the Board may, in accordance with the provisions of a scheme made under this section, enter on the lands and execute such drainage works as appear to them desirable.

Schemes for
drainage of
small areas.

(2) Before executing any works under this section the Board shall prepare a draft scheme stating—

- (a) the works proposed to be executed ;
- (b) the area to be improved thereby ;
- (c) the estimated cost of the execution of the works, which shall not exceed an amount equal to five pounds, for each acre in the area to be improved, or five thousand pounds in all, and the maximum amount to be recoverable by the Board in respect of the costs thereof ;
- (d) the manner in which the expenses of executing and maintaining the works are to be apportioned amongst the lands comprised in the area ;

and shall give to the owners and occupiers of land comprised within the area, and to any navigation authority or other body or person appearing to the Board to be affected by the scheme, notice in the prescribed manner of the making of the draft scheme, and of the place where it can be inspected and of the time within which objections to the scheme may be presented to the Board, and the Board shall, before settling the scheme, consider any objections which may have been duly made.

(3) Copies of the scheme when settled shall be served on the owners and occupiers of land in the area to which the scheme relates.

(4) For the purpose of executing any works under a scheme and maintaining the same the Board shall, within the area to which the scheme relates or in which the works are to be executed, have all the powers of a drainage board under the principal Act as amended by this Act, but subject to the restrictions thereby imposed on the exercise of such powers.

(5) Any expenses incurred by the Board under this section in the execution of drainage works to an amount not exceeding the amount declared by the scheme to be the maximum amount of expenses recoverable by them, or in maintaining any such works, shall be recoverable by the Board in a summary manner from the several owners of the lands to which the scheme relates according to the apportionment in the scheme :

Provided that if any owner so requires in writing the sum payable by him shall be recoverable by the Board by means of a rate to be made and levied by the Board in like manner, subject to the like provisions and with the like incidence, as are applicable in the case of a private improvement rate for private improvement expenses incurred by a local authority under the Public Health Act, 1875, with this qualification, that the Board shall, on the application of the owner or occupier of any land subject to the rate, determine the proportion of the rate to be borne by them respectively, having regard to the benefit derived from the works, the contract of tenancy, and all other circumstances of the case, but the local

authority may on the application and on behalf of the Board collect the rate and pay over the proceeds to the Board after deducting such reasonable costs of collection as may be agreed with the Board, or, in default of agreement, settled by the Local Government Board.

17.—(1) The Board of Agriculture and Fisheries may, with respect to any area consisting of one or more counties or county boroughs, authorise any body of persons constituted in the prescribed manner, to exercise on behalf of the Board, subject to such appeal to the Board as may be prescribed, any of the powers of the Board under this Part of this Act, and may, if they think fit, prescribe the procedure and the method of authentication of any notice or other instrument issued by any such body.

Delegation of
power of Board
to committees.

(2) At least a majority of the members of any body of persons constituted in accordance with the provisions of the foregoing subsection shall consist, in such proportion as the Board may fix, of members of the councils of the counties and county boroughs comprised in the area for which such body is constituted.

18. Nothing in this Part of this Act shall authorise the execution of any works on, over or under tidal lands below high-water mark of ordinary spring tides, except in accordance with such plans and sections, and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Works below
high-water
mark.

19.—(1) Nothing in this Part of this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown, and in particular nothing therein contained authorises the Board of Agriculture and Fisheries to take, use or in any manner to interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to His Majesty in right of the Duchy of Lancaster or in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Chancellor of the Duchy or of the Commissioners of Woods or the Board of Trade, as the case may be, on behalf of His Majesty first had and obtained for that purpose (which consent the said Chancellor of the Duchy, Commissioners and Board are hereby respectively authorised to give).

Crown rights.

(2) Nothing in this Part of this Act affects prejudicially any estate, right, power, privilege or exemption vested in or enjoyed by the Duke of Cornwall or the possessor for the time being of the Duchy of Cornwall.

PART III.

GENERAL.

Powers of
entry on land.

20. Any person authorised in that behalf by the Board of Agriculture and Fisheries or by any body of persons exercising any powers of the Board on their behalf may, for the purpose of carrying this Act into effect, on the production (if so required) of his authority, enter on and inspect any land.

If any person prevents or obstructs the entry for the purpose of this Act upon any land of any person authorised under this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Crown and
Duchy
Lands.

21. The principal Act and this Act shall, subject as herein-before expressly provided, apply to land belonging to His Majesty, in right of the Crown, or the Duchy of Lancaster, and to land belonging to the Duchy of Cornwall and as respects—

- (a) land belonging to His Majesty in right of the Crown, the Commissioners of Woods ;
- (b) land belonging to His Majesty in right of the Duchy of Lancaster, the Chancellor of the Duchy ;
- (c) land belonging to the Duchy of Cornwall, such person as the Duke of Cornwall or the possessor for the time being of the Duchy of Cornwall appoints ;

shall, for the purposes of the principal Act, be deemed to be the proprietor of the land.

Expenses of
Board.

22. The expenses of the Board of Agriculture and Fisheries under this Act so far as not recovered in manner provided by this Act shall to such an amount as the Treasury may sanction be defrayed out of moneys provided by Parliament.

Short title,
construction
and definitions

23.—(1) This Act may be cited as the Land Drainage Act, 1918.

(2) This Act shall be construed as one with the principal Act.

(3) In this Act the expression “prescribed” means prescribed by regulations made by the Board of Agriculture and Fisheries, the expression “drainage” includes defence against water, and the expression “navigation authority” means any person or body of persons having powers under any Act of Parliament to work or maintain a canal or other inland navigation.

SCHEDULES.

FIRST SCHEDULE.

Sections 1, 2(3),
7 (1).

PART I.

PROCEDURE FOR MAKING ORDERS.

(1) Before making an order the Board shall cause notice of the intention to make the order and of the place where copies of the draft order may be inspected and obtained, and of the time within and manner in which objections to the draft order may be made, to be published in the London Gazette and in such other manner as they think best adapted for informing persons affected, and to be sent to the council of every county or county borough in which any part of the area proposed to be affected by the order is situate and to every drainage authority or navigation authority which is known to the Board to be exercising jurisdiction within the area proposed to be affected by the order.

(2) Before making an order the Board shall consider any objections which may be duly made to the draft order and may in any case cause a public local inquiry to be held with respect to any objections to the draft order.

(3) After an order has been settled and made by the Board it shall be published in such a manner as they think best adapted for informing persons affected with notice that the Board have settled the order, and that the order will become final and have effect as an Act of Parliament unless within such period, not being less than thirty days as may be stated in the notice, a memorial is presented to the Board by some person or body affected by the order and having such interest as may be prescribed as being sufficient for the purpose praying that the order shall not become law without confirmation by Parliament.

(4) If no such memorial has been presented within such period as aforesaid or if every such memorial has been withdrawn, the Board shall confirm the order and the order shall thereupon have effect as if enacted in this Act, but if any such memorial has been presented and has not been withdrawn the order shall be provisional only and shall have no effect unless and until confirmed by Parliament.

PART II.

PROVISIONAL ORDERS.

(1) The Board may submit to Parliament for confirmation any provisional order made by them in pursuance of this Act.

(2) If, while the Bill confirming any such order is pending in either House of Parliament, a petition is presented against any order comprised therein, the Bill, so far as it relates to such order, may be referred to a Select Committee, and the petitioner shall be allowed to appear and oppose as in the case of Private Bills.

(3) The Board may revoke, either wholly or partially, any provisional order made by them before the order is confirmed by Parliament, but such revocation shall not be made whilst the Bill confirming the order is pending in either House of Parliament.

PART III.

GENERAL.

(1) The making and confirmation of an order shall be *prima facie* evidence that all the requirements of this Act in respect of proceedings required to be taken previously to the making and confirmation of such order have respectively been complied with.

(2) The Board may make regulations in relation to the publication of notices and advertisements under this schedule and to the holding of and procedure at public local inquiries under this schedule and to any other matters of procedure respecting the making of orders under this Act.

Section 14.

SECOND SCHEDULE.

PART I.

AMENDMENTS OF THE LAND DRAINAGE ACT, 1861.

Section amended.	Amendment.
Section 29 Section 38	After "one thousand pounds" there shall be inserted " or an amount equal to one pound for each acre in " the area within which a rate will require to be levied " to meet the expenditure involved, whichever amount " is the greater."
Section 34 -	At end there shall be inserted "Provided that if the " person whose obligation is proposed to be com- " muted does not assent to the proposed commutation, " notice of the proposed commutation and of the time " within which objection thereto may be presented " shall be given to that person, and before such " consent as aforesaid is given to the commutation " any objection which is duly presented shall be " considered."
Section 47 -	There shall be omitted the words "it is made" and the words "nor unless" where they first occur.
Section 67 -	After "cease" there shall be inserted "except so far as " the provisional order constituting the district may " otherwise provide."
Section 71 -	After the words "Part two of this Act and" there shall be inserted the words "the order or."

PART II.

PROVISIONS OF THE LAND DRAINAGE ACT, 1861, REPEALED.

Section 15, from "sewers" to the end of the section, and sections 59, 63, 64, and 65.